Tentative Rulings for July 09, 2026
Department 2

To request oral argument, you must notify Judicial Secretary Crystal Marias at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 143 8184

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVMV2603709	COLLIER VS SAN GORGONIO MEMORIAL HOSPITAL	PETITION FOR ENFORCE ACCESS TO MEDICAL RECORDS UNDER EVIDENCE CODE SECTION 1158 AND REQUEST FOR ATTORNEY'S FEES AND COSTS

Tentative Ruling: PETITION GRANTED

2.

CASE #	CASE NAME	HEARING NAME
CVRI2403260	QUIJANO VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Proof Of Service: Proper

DENY as untimely.

Plaintiffs, Juan and Sonya Quijano, allege that on 7/26/23, he purchased a new 2024 Chevrolet Silverado for $95,316.72 from Riverside Chevrolet, which was accompanied by warranties. Defendant General Motors, LLC manufacture red the vehicle. Plaintiffs allege the vehicle was delivered with serious defects and nonconformities to warranty including the engine and steering system. Plaintiffs presented the vehicle for repairs to a GM authorized repair facility on several occasions, which represented the vehicle was repaired but, was unable to conform it to the warranty after a reasonable number of repair attempts. Plaintiffs continued to experience symptoms of the defects, which impaired the use, value and/or safety of the vehicle. Defendant refused to repurchase or replace the vehicle. Plaintiffs filed their complaint on 6/12/24 alleging three causes of action for violations of the Song Beverly Act (SBA): 1) breach of express warranty; 2) breach of implied warranty; and 3) violation of Civil Code § 1793.2.

Now, Plaintiffs move for $48,083.34 in attorneys' fees and costs. This amount consists of $44,564.17 in attorneys' fees, an additional $2,250 to review Defendant's opposition, draft the reply, and attend the hearing on this motion, and $1,269.17 in costs. Plaintiffs state they are the prevailing party under the Song-Beverly Act and pursuant to the CCP § 998 Offer agreed to between the parties. Plaintiffs argue they are thus entitled to attorneys' fees and provide support for the requested hourly rates and billing entries.

In opposition, Defendant argues the motion should be denied entirely as untimely. In the alternative, Defendant challenges the reasonableness of the rates, argues entries are excessive, and that no multiplier is warranted.

In reply, Plaintiffs argue that no judgment has been entered and that the court retained jurisdiction under CCP § 664.6 to enforce the settlement, which would include the issue of attorneys' fees. Plaintiff otherwise attempts to further justify the rates and billing entries.

The Song-Beverly Act contains a cost-shifting provision that expressly allows prevailing plaintiffs to recover their costs and expenses, including attorney fees. Civil Code §1794(d) provides: "If the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." There is no dispute that Plaintiffs are the prevailing party in the action.

The main issue is the timeliness of Plaintiffs' motion. In arguing the motion is untimely, Defendant cites to California Rules of Court, Rule 3.1702(b)(1), which states: "A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court--including attorney's fees on an appeal before the rendition of judgment in the trial court--must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case." The normal time limit for filing a notice of appeal (and an attorney fee motion) is 60 days after the clerk's or any party's service of notice of entry of judgment, or 180 days after the date of entry, whichever is the earliest. (CRC 8.104(a).)

Defendant also cites to a recent Fourth District Court of Appeal decision, *Hatlevig v. General Motors, LLC* (2026) 118 Cal.App.5th 644 ("*Hatlevig*"). In *Hatlevig,* the parties reached a settlement that agreed the plaintiff was the prevailing party for purposes of attorneys' fees. (*Id.* at 646.) At a trial readiness conference, plaintiff notified the court of the settlement, and the court ordered a dismissal to be filed within 45 days. (*Id.*) The clerk generated a "Notice of Dismissal by Court" which stated the case would be deemed dismissed without prejudice on 8/15/2023 unless a judgment or dismissal was filed or a party appeared to show good cause why the case should not be dismissed. (*Id.* at 647.) Neither event occurred on 8/15/2023. (*Id*.)

On 8/31/2023, the *Hatlevig* plaintiff filed a motion for attorneys' fees and in opposition, General Motors argued the motion was untimely because it had not been served within 180 days of the date of settlement, citing to California Rules of Court, Rule 3.1702(b)(1). (*Id.*) The trial court denied the motion, agreeing with General Motors that it was untimely because the case was dismissed on 8/15/2023 and the plaintiff filed the motion more than 180 days thereafter. (*Id.*)

The Fourt District affirmed, agreeing that the "event" that "started the clock running" is the conclusion of the litigation on its merits on 8/15/2023. (*Id.* at 649.) The Fourth District stated, "Rule 3.1702 does not require an appealable order or judgment even though it uses 'the time for filing a notice of appeal' to set the deadline for serving and filing a motion for attorney fees" and that, "A voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees." (*Id.* [citations omitted].) The court recognized that the actual dismissal order was not filed until 6/17/2024, when the trial court signed a minute order dismissing the operative complaint without prejudice, but stated that date was "…not the date of dismissal for purposes of starting the clock running on the time Hatlevig had to move for attorney fees." (*Id.* at 650.) The Fourt District noted that Hatlevig implicitly acknowledged the case had been dismissed by filing its motion for attorneys' fees on 8/31/2023 – but failing to serve it until two months later. (*Id.*) The court thus upheld the trial court's denial of the motion for attorneys' fees because 180 days after the dismissal was 2/11/2024, and while Hatlevig filed the motion before that date, it was not served until after the 180-day deadline expired. (*Id.*)

A similar timeline and procedural history are seen in this case. On 8/7/2025, Plaintiffs filed a notice of settlement of the entire case. On 8/12/2025, the court issued a Notice of Order to Show Cause re: Dismissal After Conditional Settlement. On 11/21/2025, on its own motion, the court dismissed the case without prejudice for the failure of Plaintiffs to file in a timely fashion a declaration in response to an order to show cause why the matter should not be dismissed. Under *Hatlevig*, 11/21/2025 is the date the clock began to run for Plaintiffs to file the motion for attorneys' fees – which makes 5/20/2026 the deadline by which Plaintiffs needed to bring this motion. Plaintiffs filed the motion on 5/21/2026, one day late.

Plaintiffs' arguments in opposition are without merit. Plaintiff argues *Madrigal v. Hyundai Motor America* (2023) 90 Cal.App.5th 385 controls. However, *Madrigal* involves the interpretation of the cost-shifting provisions under CCP § 998 and does not address the filing deadlines for fee motions under Rules 3.1702 or 8.104. Moreover, Plaintiffs failed to file the CCP § 998 Offer or enter judgment thereunder. Rather, just like in *Hatlevig*, Plaintiffs failed to respond to the court's order to show cause as to why the case should not be dismissed.

Plaintiffs also argue that the court's retention of jurisdiction under CCP § 664.6 and the lack of a final judgment means the 180-day clock has not started. But this is entirely inapposite to the ruling in *Hatlevig* that makes clear Rule 3.1702 "…does not require an appealable order or judgment" to begin the deadline for serving and filing a motion for attorneys' fees. (*Hatlevig, supra*, 118 Cal.App.5th at 649.)

Finally, Plaintiffs state that the court "vacated" the 11/21/2025 dismissal at the order to show cause hearing on 11/24/2025 and thus, the two orders conflict such that the last in time order must be given preclusive effect. (See Plaintiffs' Reply, p. 6:24-7:9; See also, Declaration of Allen Amarkarian in Support of Reply ¶ 7.) While the court entered a minute order on 11/24/2025 stating the matter had been dismissed without prejudice and the court retained jurisdiction under CCP § 664.6, the order states there were no appearances and the docket indicates the OSC hearing itself was vacated. The 11/24/2025-minute order likewise does not mention vacating the 11/21/2025 order, which is ultimately the dismissal signed by Judge Greene. These are not conflicting rulings and even so, Plaintiffs do not cite any binding authority in support of this argument.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2407309	GARCIA VS AMERICAN HONDA MOTOR CO., INC., A CALIFORNIA CORPORATION	MOTION FOR JUDGMENT ON THE PLEADINGS ON 1ST AMENDED COMPLAINT

Tentative Ruling: PROOF OF SERVICE: Proper

Deny

This is a lemon law case. On December 26, 2024, Plaintiffs Sergio Garcia and Nayelli Garcia ("Plaintiffs") filed a Complaint against Defendant American Honda Motor Co., Inc. ("Defendant") asserting causes of action for (1) violation of Song Beverly Act – breach of express warranty, and (2) fraudulent inducement – concealment. Defendant demurred to the fraudulent concealment cause of action, and on March 5, 2025, the Court sustained the demurrer with leave to amend.

On April 4, 2025, Plaintiffs filed a First Amended Complaint asserting the same causes of action against Defendant (the "FAC"). In the FAC, Plaintiffs allege that on February 19, 2023, they purchased a certified pre-owned 2020 Acura MDX manufactured and/or distributed by Defendant (the "Vehicle"). (FAC at ¶¶ 8, 11, 84.) At that time, she entered into a New Vehicle Limited Warranty contract with Defendant, which provides basic and powertrain coverage for the Vehicle. (FAC at ¶ 9.) The Vehicle was equipped with a defective computerized driver-assistance safety system called the "Honda Sensing" system and a defective an autonomous braking system called Collision Mitigation Braking System (or "CMBS"). (FAC at ¶ 85.) Plaintiffs presented the Vehicle to Defendant's authorized facilities for repairs, but Defendant was unable to conform the Vehicle to the warranty after a reasonable number of repair attempts. (FAC at ¶¶ 92-94.)

Defendant again demurred to the fraudulent concealment cause of action and moved to strike Plaintiffs' claim for punitive damages. On August 19, 2025, the Court overruled the demurrer and denied the motion to strike. On December 17, 2025, Defendant filed an Answer to the FAC.

Defendant now moves for judgment on the pleadings, arguing that Plaintiffs purchased the Vehicle used, and the Song Beverly Act does not cover used vehicles, including certified pre-owned vehicles.

In opposition, Plaintiffs argue that certified pre-owned vehicles sold with a new car warranty, like the Vehicle at issue here, are protected by the Song Beverly Act.

In reply, Defendant argues that vehicles sold with a certified pre-owned warranty are not "new" vehicles and are therefore not covered by the Song Beverly Act.

A motion for judgment on the pleadings has the same function as a general demurrer and the same rules govern, except as provided by C.C.P. § 438. (*Cloud v. Northrop Grumman Corp*. (1998) 67 Cal.App.4th 995, 999.) C.C.P. §438 sets forth the grounds and procedures for the motion, stating that a defendant's motion for judgment on the pleadings may be made on the grounds that the court lacks jurisdiction, or that the complaint does not state facts sufficient to support relief. (C.C.P. §438(c)(1)(B).) The grounds for a motion for judgment on the pleadings must appear on the face of the challenged pleading or be based on facts which the court may judicially notice. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061.) C.C.P. § 452 provides that "[i]n the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." A motion for judgment on the pleadings may be granted with or without leave to amend. (C.C.P. §438(h)(1).) However, leave to amend is routinely granted. (*People v. $20,000 U.S. Currency* (1991) 235 Cal.App.3d 682, 692.) Pleaders should have the same opportunity to cure defects in their pleadings as they would have had after a normal ruling on demurrer. (*MacIsaac v. Pozzo* (1945) 26 Cal.2d 809, 815.) Further, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment. (*Virginia G. v. ABC Unified School Dist.* (1993) 15 Cal.App.4th 1848, 1852.) If leave to amend is granted, the party against whom the motion is granted must be given 30 days to file an amended pleading. (C.C.P. §438(h)(2).)

"The Song-Beverly Act is a remedial statute designed to protect consumers who have purchased products covered by an express warranty." (*Robertson v. Fleetwood Travel Trailers of California, Inc*. (2006) 144 Cal.App.4th 785, 798.) Song-Beverly states that "[a]ny buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief." (Civil Code § 1794(a).) To assert a Song-Beverly claim against a manufacturer, the plaintiff must be a retail buyer of new consumer goods from a retail seller. (*Dagher v. Ford Motor Co.* (2015) 238 Cal.App.4th 905, 924; Civil Code § 1791(b).) Under the Act, "consumer goods" is defined as "any new product or part thereof that is used, bought, or leased for use primarily for personal, family, or household purposes, except for clothing and consumables." (Civil Code §1791.) "New motor vehicle" means "a new motor vehicle that is bought or used primarily for personal, family, or household purposes," and includes (among categories not relevant in this case), "a dealer-owned vehicle and a 'demonstrator' or other motor vehicle sold with a manufacturer's new car warranty." (Civil Code §1793.22(e)(2).) A demonstrator is a vehicle assigned by a dealer for the purpose of demonstrating qualities and characteristics common to vehicles of the same or similar model and type. (*Id.*)

Defendant argues that Plaintiffs' claims fail under *Rodriguez vs FCA US, LLC* (2024) 17 Cal.5th 189, because Plaintiffs did not purchase a new vehicle covered by a new car warranty. In response, Plaintiffs argue that they purchased a Certified Pre-Owned vehicle with a new warranty, and that is a "new" vehicle.

In *Rodriguez*, *supra*, the plaintiffs purchased a used vehicle that still had a remaining powertrain warranty. The plaintiffs sued the manufacturer contending that the

Song-Beverly Act was violated because the manufacturer did not refund or replace Plaintiffs' defective automobile as required under the statute. The manufacturer argued that the Song-Beverly Act did not apply because the vehicle was not a new vehicle. The California Supreme Court examined the statutory construction and meaning behind the phrase "new motor vehicle" and ultimately sided with the manufacturer's interpretation of the phrase – that a new motor vehicle is one with a manufacturer's new car warranty issued with the sale. The Court rejected Plaintiff's interpretation of "new motor vehicle," in which they argued that this phrase encompassed any vehicle sold with an unexpired manufacturer's new car warranty. (*Id.* at 197-198.) Specifically, the Court held: "We conclude that a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of 'new motor vehicle' unless the new car warranty was issued with the sale." (*Id.* at 196.)

In addition to *Rodriguez*, *supra*, Defendant also cites multiple Federal district court cases for its contention that a certified pre-owned vehicle warranty is not a new car warranty. (See, *Crescencio v. Ford Motor Co.* (C.D. Cal. 2025) 811 F.Supp.3d 1132, 1138; *Dubrosky v. Am. Honda Motor Co.* (C.D. Cal. 2025) 2025 WL 2451031, *9 ["Angulo does not allege that Honda issued him a new car warranty with the sale of his certified pre-owned vehicle"]; *Harris v. FCA US, LLC* (C.D. Cal. 2026) 2026 WL 1366027, *3-4.) However, these cases are not binding on this Court. Furthermore, these courts "acknowledge [] that this precise question — whether a CPO warranty constitutes a new car warranty — is unsettled under California law, with no clear answer from the California Supreme Court, California Courts of Appeal, or the Ninth Circuit. (*Crescencio*, *supra*, 811 F.Supp.3d at 1139.)

In addition, Plaintiffs are correct that in *Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, the court determined that the manufacturer was liable under the Song Beverly Act for defects in a used vehicle because it was directly involved in the sale of the vehicle to the plaintiff. (*Id*. at 339-340.) The *Kiluk* court, relying on section 1795.5,[1] first stated that "[t]he same protections [under the Song Beverly Act] generally apply to sale of used goods accompanied by an express warranty, except that the distributor or retail seller is bound, as opposed to the manufacturer…" (*Id.* at 336 [emphasis added].) It then stated that since § 1795.5 assumed the manufacturer and distributor/retailer were separate entities, in cases where the manufacturer sells directly to the public, it acts as a retailer, and the exemption for manufacturers does not apply. (*Id*. at 340.) The court there held that defendant Mercedes acted as a retailer in selling the plaintiff the certified pre-owned vehicle because it "partnered with a dealership to sell used vehicles directly to the public by offering an express warranty as part of the sales package, which is a crucial incentive for buyers like plaintiff." (*Ibid.*)

Following *Kiluk*, in *Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 389, the court stated: "Under the lemon law, only distributors and retail sellers, not

---

[1] Civ. Code § 1795.5 discusses the obligations of a distributor or retail seller of used consumer goods. Specifically, it states: "Notwithstanding the provisions of subdivision (a) of Section 1791 defining consumer goods to mean "new" goods, the obligation of a distributor or retail seller of used consumer goods in a sale in which an express warranty is given shall be the same as that imposed on manufacturers under this chapter" except under limited circumstances. (Civ. Code § 1795.5.)

manufacturers, are liable for breach of implied warranties in the sale of a used car where, as here, the manufacturer did not offer the used car for sale to the public." In *Ruiz*, the court found that the plaintiff failed to present any evidence that the defendant was a distributor or retailer. (*Id*. at 399.) In *Rodriguez*, *supra*, the Supreme Court confirmed that: "...for new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good." (*Id.* at 202 [emphasis added].)

In the present case, Plaintiffs allege that they purchased a certified pre-owned vehicle from an authorized Defendant dealership; Defendant issued a "New Vehicle Limited Warranty" on the Vehicle with that purchase; and they purchased the Vehicle based on the representations of Defendant's authorized agent that the Vehicle had been certified by Defendant as safe pre-owned vehicle. (FAC at ¶¶ 8-9, 84-87.) These allegations are sufficient, for pleading purposes, to show that Defendant issued a new warranty on the Vehicle and "played a substantial role" it its sale. Accordingly, the motion is denied.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504589	PARRA VS HYUNDAI MOTOR AMERICA	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling: PROOF **OF SERVICE**: Proper

On the merits, the motion is **DENIED** in its entirety.

Moreover, on June 5, 2026, the Court ordered Defendant to meet and confer in person, or via phone or videoconference with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the judgment on the pleadings. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to a judgment on the pleadings and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the First Amended Complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall, 10 days before the continued hearing date set, do one of the following: (1) vacate the hearing on the motion; (2) file with the Court a declaration stating the parties have agreed that Plaintiff will file an amended complaint before the next hearing date; or (3) file with the court a declaration stating the means by which the parties met and conferred and identify the specific objections in the motion and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., § 439 subd. (a)(3).)

The 10-day deadline was June 29, 2026. However, no declaration was filed as of July 7, 2026, and hearing on the JOP was not vacated.

On the merits, the motion is **DENIED** in its entirety.

This lemon law action arises from Plaintiff Delilah H Parra's November 18, 2019, purchase of a 2020 Hyundai Palisade (the "Vehicle") for which Defendant Hyundai Motor America (or "Hyundai") issued an express warranty. Plaintiff alleges the Vehicle contains defects and nonconformities that manifested during the applicable express warranty period. The Complaint alleges Hyundai was aware and knew of the defects prior to Plaintiff acquiring the Vehicle but failed to disclose this fact to Plaintiff at the time of the purchase and thereafter. Hyundai has failed to replace the Vehicle or promptly make restitution.

The operative Complaint, filed May 1, 2025,[2] asserts the following causes of action:

1. Violation of Subdivision (d) of Civil Code section 1793.2
2. Violation of Subdivision (b) of Civil Code section 1793.2
3. Violation of Subdivision (a)(3) of Civil Code section 1793.2
4. Breach of the Implied Warranty of Merchantability
5. Fraudulent Inducement - Concealment

Defendant now moves for judgment on the pleadings as to the second, third, and fifth causes of action for failure to state facts sufficient and failure to meet the applicable pleading standard. Defendant argues the fifth cause of action is also barred by the Economic Loss Rule. As to the breach of implied warranty, Defendant contends it is untimely. Defendants assert the tolling doctrines fail, and Plaintiff fails to properly plead any of the tolling doctrines.

In opposition, Plaintiff argues the Complaint sufficiently states facts sufficient as to the disputed causes of action. Plaintiff does not address Defendant's argument that the breach of implied warranty claim is untimely. As to the 5th cause of action for Fraudulent Inducement – Concealment, Plaintiff maintains the Complaint contains sufficient allegations required by the heightened pleading standard. Plaintiff also argues the Economic Loss Rule does not bar the fifth cause of action. Plaintiff alternatively requests leave to amend.

A reply was due on May 29, 2026, but none was found on eCourt at the end of business day on June 2, 2026.

Code of Civil Procedure section 439 requires a meet and confer process via phone, in person, or video conference before filing a motion for judgment on the pleadings. The moving party must file and serve with the motion a declaration indicating the means of the meet and confer, or that the opposing party failed to respond or meet and confer. (*Id.* at § 493, subd. (a)(3).) It is unclear if Defense counsel attempted meet and confer via email, which is not Code-compliant, or via in person, phone, or video conference. (Suard Decl., ¶3.)

---

[2] This action was originally filed in Orange County. This date reflects the date the Complaint was filed in Orange County.

A defendant’s motion for judgment on the pleadings may be made on the grounds that the court lacks jurisdiction, or that the complaint does not state facts sufficient. (Code Civ. Proc., § 438, subd. (c)(1)(B).)

Defendant contends the breach of implied warranty claim is untimely and the various equitable doctrines alleged are not properly plead. Plaintiff’s opposition does not address this argument.

Civil Code section 871.21 provides that a Song-Beverly action “shall be commenced within one year after the expiration of the applicable express warranty.” (Civ. Code, § 871.21, subd. (a).)

Here, the Complaint alleges that on Plaintiff purchased the Vehicle on November 18, 2019, for which Defendant “provided a warranty that contained various warranties, including but not limited to the bumper-bumper warranty, power train warranty, emission warranty, etc.” (Compl., ¶¶6-7.)

The Song-Beverly Act provides that “[t]he duration of the implied warranty of merchantability…are coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event will such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer.” (Civ. Code, § 1791.1, subd. (c).)

Prior to its revision, the Song-Beverly Act (“SBA”) contained no express statute of limitations. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1305.) As such, an action for breach of warranty under the SBA has been held to be governed by the Uniform Commercial Code 2725, which governs the statute of limitations for warranties. (*Id.* at 1306; *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 215 [The California Uniform Commercial Code section 2725 ‘controls rather than the general provision of Code of Civil Procedure section 338, subdivision (a) for liabilities created by statute”].) The statute of limitation is subject to tolling. (*See* Cal. U. Com. Code, § 2725; see *Krieger, supra,* 234 Cal.App.3d at 214, fn. 5.)

“Because an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that ‘explicitly extends to future performance of the goods.’” (*Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 134.) Thus, the statute of limitations for a breach of implied warranty is four years from date of delivery. (Cal. U. Com. Code, § 2725; see also *Cardinal Health 301, Inc., supra,* 169 Cal.App.4th at 129 [“[U]nder section 2725, the general limitations rule for a breach of warranty cause of action is four years from the date the goods are delivered (regardless of the date the buyer discovers the breach)…”].)

However, the SBA was revised after *Krieger, Mexica,* and *Cardinal Health.* The revised SBA provides that notwithstanding section 871.20, subdivision (a), discussed above, “[a]n action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle." (Code Civ. Proc., § 871.21, subd. (b).)

Section 871.20 applies to "an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty." (Code Civ. Proc., § 871.20, subd. (a).)

Here, Plaintiff brings this claim under Civil Code sections 1791.1, 1794, and 1795.5. Thus, the fourth cause of action is covered by section 871.20 and subject to the six-year statute of limitations set forth in section 871.21, subdivision (b).

However, the Complaint contains no allegation of the Vehicle's delivery date. Rather, the only allegation that includes a date is that Plaintiff purchased the Vehicle on November 18, 2019, and Defendant provided a warranty. (Compl., ¶¶6-7.) As no date of delivery is alleged, the statute of limitations for Plaintiff's claim of breach of implied warranty does not appear on the face of the Complaint. As such, the Court **DENIES** the motion for judgment on the pleadings as to the fourth cause of action. Based on this finding, the Court declines to reach the merits of the equitable tolling doctrines arguments advanced by Defendant.

Defendant contends Plaintiff failed to plead material facts with any certainty to provide sufficient notice of Plaintiff's claim for violation of Civil Code section 1793.2, subdivisions (a)(3) and (b). Defendant points out the Complaint fails to set forth enough of a history or specific description of the repair history or what parts or literature Defendant failed to provide, instead stating conclusions without any factual support.

Plaintiff argues the Complaint sufficiently notifies Defendant that it faces Song-Beverly claims, and Defendant points to no authority stating that Song-Beverly claims must be plead in exact detail, particularly where Defendant has all the information itself.

"The Song-Beverly Act is a remedial statute designed to protect consumers who have purchased products covered by an express warranty." (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 740.) "If a manufacturer elects to provide an express warranty for consumer goods such as motor vehicles, the Act protects buyers in a number of ways." (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 121.) One of such protection is the requirement that the manufacturers of consumer goods sold in this state are to maintain service and repair facilities or designate independent repair or service facilities "reasonably close to all areas where its consumer goods are sold to carry out the terms of the warranties." (Civ. Code, § 1793.2, subd. (a)(1)(A).) In complying with this requirement, the manufacturer must "[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Civ. Code, § 1793.2, subd. (a)(3).)

The Act goes on to provide that "Where…service or repair of goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state…[and] the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days." (Civ. Code § 1793.2, subd. (b).) "If the manufacturer or its representative…is unable to service or repair a new motor vehicle…to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle…or promptly make restitution to the buyer…" (Civ. Code § 1793.2, subd. (d)(2).)

The Complaint alleges Defendant and its representative failed to commence the service or repair of the Vehicle within a reasonable time and failed to service the Vehicle to conform to the applicable warranties within 30 days. (Compl., ¶33.) In his third cause of action, Plaintiff sufficiently alleges the ultimate fact that Defendant failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period. (*Id.* at ¶38.)

The facility that is deficient or the literature not available are evidentiary facts which Plaintiffs ultimately need to demonstrate, but not at the pleading stage. The rules of pleading require that only ultimate facts be alleged; evidentiary facts supporting the allegation of ultimate fact need not be pled. (*McKelly v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1469.) The distinction between "ultimate facts" and "conclusions" depends on whether the pleading gives adequate notice of the claims/defenses to be presented. (*Estate of Lind* (1989) 209 Cal.App.3d 1424, 1434.) The complaint gives Defendant adequate notice of the claims presented. Accordingly, the Court **DENIES** the motion on these grounds as well.

Concealment requires: "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.)

Although fraud claims require a heightened pleading standard, it is not practical to allege facts showing how, when, and by what means something did not happen. (*Alfaro v. Community Housing Improvement System & Planning Assn.* (2009) 171 Cal.App.4th 1356, 1384.) However, if the concealment is based on providing false or incomplete statements, the pleadings must at least set forth the substance of the statements at issue. (*Ibid.*) Additionally, the specificity requirement of fraud is "relaxed when it is apparent from the allegations that the defendant necessarily possesses knowledge of the facts." (*Quelimane Co. v. Steward Title Guaranty Co.* (1998) 19 Cal.4th 26, 27.)

The case of *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828[3] addressed the sufficiency of pleading fraudulent concealment in a lemon law case in the context of a demurrer. The *Dhital* court found that it was sufficient that plaintiffs alleged a transmission defect in numerous vehicles, including the plaintiff's, the defendant knew of the defect and the hazards they posed, defendant had exclusive knowledge of the defect and failed to disclose that information, defendant intended to deceive plaintiffs by concealing known defects, the plaintiffs would not have purchased the car if they had known of the defects, and they suffered damages on the sums paid to purchase the vehicle. (*Id.* at 844.) The manufacturer argued that there was no allegation of a buyer-seller relationship since the plaintiff had purchased the vehicle from a dealership, but the court found that an authorized dealership was an agent for purposes of demurrer. (*Id.*)

Here, the Complaint alleges the Vehicle manifested defects and nonconformities within the applicable express warranty period, including but not limited to transmission defects, engine defects, electrical defects, among other defects. (Compl., ¶11.) Specifically, the Vehicle's 8-speed transmission was defective and susceptible to sudden and premature failure. (*Id.* at ¶46.) Plaintiff alleges Defendant had knowledge of the defect prior to Plaintiff acquiring the Vehicle through pre-production and post-production testing data, early consumer complaints about the Transmission Defect made directly to Defendant and its network of dealers, aggregate warranty data, testing in response to complaints, and warranty repair and part replacements data Defendant received. (*Id.* at ¶¶49, 51-53.) The Complaint avers that Hyundai failed to disclose such information. (*Id.* at ¶41.) Plaintiff alleges he would not have purchased the Vehicle had he been aware of the defects, and Plaintiff suffered damage as a result. (*Id.* at ¶¶50-51, 55, 57.) This is sufficient for pleading purposes.

In general, a duty to disclose may arise from parties entering into any kind of contractual agreement. (*OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp.* (2007) 157 Cal.App.4th 835, 859.) "Suppression of a material fact is actionable fraud when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship. [Citation.]" (*Dhital, supra,* 84 Cal.App.5th at 844.) "For purposes of duties to disclose, the California Supreme Court has defined a 'relationship' as a 'transaction' between the parties." (*Warner Constr. Corp. v. City of Los Angeles* (1970) 2 Cal.3d 285, 294.)

Here, the Complaint alleges Plaintiff purchased the Vehicle for which Defendant provided an express warranty, and "Plaintiff is entitled to rescission of the contract pursuant to Civil Code, section 1794, et seq." (Compl., ¶¶6-7, 18.) Accordingly, Plaintiff sufficiently alleged that the parties entered a contractual arrangement to support that a transactional relationship existed to impose a duty of disclosure upon Defendant.

Defendant argues the fifth cause of action is barred by the Economic Loss Rule.

---

[3] The California Supreme Court granted review pending *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, regarding the economic loss rule in concealment cases. After the Court issued its decision in *Rattagan,* the Court dismissed review. The court of appeals subsequently issued the remittitur, which disposed the case.

In *Dhital, supra*, 84 Cal.App.5th 828, the court expressly found that the economic loss rule did not apply to the fraudulent inducement by concealment claim. The court stated:

> To hold, at the demurrer stage, that plaintiffs' fraud claim is barred by the economic loss rule, we would need to conclude, as Nissan urges us to do, that (1) despite the Supreme Court's statement in Robinson, there is no exception to the economic loss rule for fraudulent inducement claims (or at least no exception that encompasses the claim plaintiffs allege in the SAC), or (2) plaintiffs have not adequately pleaded a claim for fraudulent inducement under California law (a question we address in pt. II.C., post). We reject both arguments and conclude the economic loss rule does not bar plaintiffs' claim.

(*Id.* at 839.)

In *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 20-21, the California Supreme Court explained:

> [U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred [citations] unless two conditions are satisfied. A plaintiff must first demonstrate the defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant's conduct must have caused injury to people or property that was not reasonably contemplated by the parties when the contract was formed.

The Court further stated:

> The guiding and distinguishing principle is this. If the alleged breach is based on a failure to perform as the contract provides, and the parties reasonably anticipated and allocated the risks associated with the breach, the cause of action will generally sound only in contract because a breach deprives an injured part of a benefit it bargained for. However, if the contract reveals the consequences were not reasonably contemplated when the contract was entered and the duty to avoid causing such harm has an independent statutory or public policy basis, exclusive of the contract, tort liability may lie.

(*Id.* at 27.)

The Court repeated the public policy reason stated in *Robinson Helicopter, Inc. v. Dana Corp* (2004) 34 Cal.4th 979 supports holding fraud a deviation from usual business practice, and a plaintiff advances the public interest in punishing intentional misrepresentations. (*Rattagan, supra,* 17 Cal.5th at 30-34.) Therefore, a plaintiff may recover out-of-pocket damages in addition to benefit-of-the-bargain damages. (*Id.* at 33-34.) *Robinson* clarified that fraud was not an exception to the economic loss rule, but rather, the doctrine did not apply at all. (*Id.*) The Court reiterated that, "Broader tort liability only arises if a defendant violates an independent legal duty and the type of harm that ensues was not reasonably contemplated or accounted for by the contractual parties.” (*Id.* at 37.)

Ultimately, the Court found that a plaintiff can assert an independent claim of fraudulent concealment in the performance of the contract. (*Id.* at 38.) However, the Court noted that Rattagan’s claims were based on fraud committed during the contractual relationship but allegedly outside the parties’ contractual rights and obligations. (*Id.* at 41, n. 12.) The Court stated as it had granted of *Dhital* regarding fraudulent inducement by concealment claims under the Act and declined to address the issues in *Rattagan*. (*Ibid.*)

Based on *Rattagan*, the economic loss rule does not bar Plaintiff’s claims, which arise out of the course of the contractual relationship discussed above. The Court **DENIES** the motion on these grounds as well.

5.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2506375	THE HUNTINGTON NATIONAL BANK VS ANNUIT COEPTIS TRANSFER INC.	MOTION FOR ORDER FOR SERVICE OF SUMMONS AND COMPLAINT: (1) UPON THE SECRETARY OF STATE; AND (2) BY PUBLICATION

Tentative Ruling: GRANT